

		Plaintiff's request for sanctions is granted in the amount of \$3,435.00. Defendants' counsel has failed to meet and confer or oppose the motion to show there was a substantial justification for their position. (Code Civ. Proc. §§ 1987.2, 2023.010.)
12	24-01402534 <i>Rascon vs. Kia America, Inc.</i>	Motion for Attorney Fees Plaintiff Savannah Rascon's Motion for Attorney's Fees is GRANTED in the amount of \$32,973. Plaintiff's request for costs is denied. (Cal. Rules of Court, rule 3.1700, subd. (a).) <u>Hourly Rate</u> "The reasonable hourly rate is that prevailing in the community for similar work." (<i>PLCM Group, supra</i>, 22 Cal.4th 1084, 1095.) "There is no requirement that the reasonable market rate mirror the actual rate billed . . . The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (<i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 701 [cleaned up].) Plaintiff is seeking fees of \$500/hr. and \$545/hr. for Hollins and \$600/hr. for Fhima as attorneys and \$220/hr. for Ianni as a paralegal. The Attorney Fee Survey Report provides \$569/hr. as the median fee charged in vehicle cases in the southern California area in 2017-2018. The average paralegal rate was \$120 in 2017-2018. Thus, after careful consideration of all papers and its own files and knowledge of fees in the community, the court finds the hourly rates by counsel are within the reasonable range, however, the paralegal rates are reduced to \$150/hr. <u>Reasonable Hours Spent</u> First, Defendants seeks to reduce Plaintiff's fees for mostly unspecified "clerical" work by attorneys. Summarizing repair orders is not clerical work. Further, the Court does not find any other billing entries to be purely clerical work. Thus, the reduction is denied. Second, Defendant requests a reduction of 3.8 hours of the 7.6 hours billed for drafting the Complaint, propounding discovery, and responding to Defendant's discovery. Defendant provides no evidence through its counsel's declaration of Plaintiff using templates to draft documents or respond to discovery. Thus, there is no evidence to support Defendant's argument. Therefore, the reduction is denied. Third, Defendant requests a general reduction to the 4.5 hours to draft this Motion, 4 hours to review the opposition and prepare a reply, 3 hours to prepare for and attend the hearing, and 3 hours to prepare an opposition for a motion to tax costs. Defendant did not file a motion to tax. Additionally, 3 hours is excessive to prepare for and attend the hearing. Defendant's claim the motion is also templated lacks the same

		evidence as discussed above. Finally, 4 hours to review an opposition and draft a reply is excessive. Therefore, a reduction of 6 hours or \$3,270 is granted. Fourth, Defendant seeks a reduction of the 1.2 hours billed to review the time slip entries. Review of the entries is necessary to provide the Court with accurate information to determine what hours were reasonably incurred. Thus, the reduction is denied. Fifth, Defendant's request to reduce the post-settlement billing by 32 hours without pointing to any particular billing entries is denied. The Court fails to find any entries which are improper.
13	25-01509350 <i>Wilshire Quinn Income Fund Reit, LLC vs. Laguna HW, LLC</i>	Motion to Confirm Sale Receiver Lance Miller's Motion for Approval of the Sale of the Receivership's Property is GRANTED. The Receiver, Miller, seeks to sell the property for \$5,300,000. Miller states the sale is in the best interests of the receivership estate because the sale price is favorable and the buyer has already acquired the neighboring parcel. (Miller Decl., ¶ 6.) Delay in selling the property beyond June 30, 2026 would allow the buyer to terminate the sale and will increase the receivership's costs. (Miller Decl., ¶ 8.) No party has opposed the sale. The Court exercises its discretion in considering all the facts and circumstances and the interests of justice and approves of the sale.